

23157

BOOK 1485 PAGE 317

JOHNSTON COUNTY
3249

12-13-95



\$250.00

Real Estate
Excise Tax

-250.00-

Excise Tax

State of North Carolina, Johnston Co
Filed for Registration at 1-26 P.M.
1995 in the
Register of Deeds Office
Recorded in Book 1485 Page 317
Phyllis N. Wall
Register of Deeds

By

Recording Time, Book and Page

Tax Lot No. Parcel Identifier No. 15025020
Verified by County on the day of 19
by

Mail after recording to SPENCE AND SPENCE, P.A.

This instrument was prepared by SPENCE AND SPENCE, P.A., PO BOX 1335, SMITHFIELD, NC 27577

Brief description for the Index

LOT, FOURTH STREET, SMITHFIELD

NORTH CAROLINA SPECIAL WARRANTY DEED

THIS DEED made this 11TH day of DECEMBER, 1995, by and between

GRANTOR

GRANTEE

NEUSE, INCORPORATED

TOWN OF SMITHFIELD, a North Carolina
municipal corporation

116 South 4th Street
Smithfield, North Carolina

CONVEYANCE OF THIS PROPERTY
HAS BEEN DULY NOTED ON THE
TAX RECORDS 12/13/95
TAX SUPERVISOR

Enter in appropriate block for each party: name, address, and, if appropriate, character of entity, e.g. corporation or partnership.

The designation Grantor and Grantee as used herein shall include said parties, their heirs, successors, and assigns, and shall include singular, plural, masculine, feminine or neuter as required by context.

WITNESSETH, that the Grantor, for a valuable consideration paid by the Grantee, the receipt of which is hereby acknowledged, has and by these presents does grant, bargain, sell and convey unto the Grantee in fee simple, all that certain lot or parcel of land situated in the City of Smithfield, Smithfield Township, Johnston County, North Carolina and more particularly described as follows:

See attached "Exhibit A" entitled "Property of Town of Smithfield", being lot 2, according to survey by Byrd Surveying, P.A., k and being 0.84 acres.

The property hereinabove described was acquired by Grantor by instrument recorded in
 Book 937, Page 113, Johnston County Registry

A map showing the above described property is recorded in Plat Book page
 TO HAVE AND TO HOLD the aforesaid lot or parcel of land and all privileges and appurtenances thereto belonging to the
 Grantee in fee simple.

And the Grantor covenants with the Grantee, that Grantor has done nothing to impair such title as Grantor received, and
 Grantor will warrant and defend the title against the lawful claims of all persons claiming by, under or through Grantor,
 except for the exceptions hereinafter stated.
 Title to the property hereinabove described is subject to the following exceptions:

1. Restrictions and Easements of Record.
2. Rights of way of public sidewalks, roads, streets and highways.
3. Rights of way and easements of public utilities as may appear of record.
4. Other matters as may appear of record.

IN WITNESS WHEREOF, the Grantor has hereunto set his hand and seal, or if corporate, has caused this instrument to be signed in its
 corporate name by its duly authorized officers and its seal to be hereunto affixed by authority of its Board of Directors, the day and year first
 above written.

NEUSE, INCORPORATED
 (Corporate Name)
 By: James B. Hyle
GARY L. WILLIAMS JAMES B. HYLE, JR.
 VICE President
 ATTORNEY
 MORRIS
 Secretary (Corporate Seal)
 USE BLACK INK ONLY



NORTH CAROLINA, JOHNSTON County.
 I, a Notary Public of the County and State aforesaid, certify that
 Grantor,
 personally appeared before me this day and acknowledged the execution of the foregoing instrument. Witness my
 hand and official stamp or seal, this day of, 19.....
 My commission expires: Notary Public



NORTH CAROLINA, WAKE JOHNSTON County.
 I, a Notary Public of the County and State aforesaid, certify that THOMAS B. MORRIS
 personally came before me this day and acknowledged that he is Assistant Secretary of
NEUSE, INCORPORATED a North Carolina corporation, and that by authority duly
 given and as the act of the corporation, the foregoing instrument was signed in its name by its
 President, sealed with its corporate seal and attested by HIM as its Assistant Secretary.
 Witness my hand and official stamp or seal, this 11TH day of DECEMBER, 1995.
 My commission expires: 9/24/96 Julie B. Kane Notary Public

The foregoing Certificate(s) of Julie B. Kane, NP
 is/are certified to be correct. This instrument and this certificate are duly registered at the date and time and in the Book and Page shown on the
 first page hereof.
Philip S. Newell REGISTER OF DEEDS FOR Johnston COUNTY
 By Deputy/Assistant-Register of Deeds.

Pro. \$ 2.00
 Reg. \$ 10.00
 Stamp \$ 250.00

EXHIBIT A

Property of Town of Smithfield, Lot 2

BEING a lot containing 0.84 acre, and being located along Market Street and Fourth Street, Smithfield, North Carolina, and having the following description:

BEGINNING at an existing iron stake, said point being located at the intersection of the southern margin of the right of way of Market Street and the western margin of the right of way of Fourth Street, thence from said BEGINNING point, along the western margin of the right of way of Fourth Street, South 26 degrees 44 minutes 00 seconds West 293.26 feet to a PK Nail in the sidewalk, a corner of Lot 1, as shown on the survey entitled "Boundary and Division Survey for Town of Smithfield" by Byrd Surveying, P.A., dated 5/16/95, thence with the line of Lot 1, as shown on said survey, North 63 degrees 16 minutes 00 seconds West 210.00 feet to a new iron pipe, in the line of Austin Manor Limited Partnership (Deed Book 1348, Page 758), thence along the line of Austin Manor, North 26 degrees 44 minutes 00 seconds East 29.37 feet to a new iron pipe in the line of Austin Manor, a common corner with Carolina Telephone and Telegraph Company (Deed Book X-11, Page 254, Deed Book 479, Page 305, Deed Book 718, Page 48), thence along the lines of Carolina Telephone, the following courses and distances: South 63 degrees 25 minutes 16 seconds East 70.31 feet to a new iron pipe, North 26 degrees 10 minutes 14 seconds East 145.03 feet to a new iron pipe, North 63 degrees 31 minutes 30 seconds West 13.03 feet to a new iron pipe, North 26 degrees 35 minutes 00 seconds East 13.09 feet to a new iron pipe, a common corner with First Citizens Bank and Trust Company, thence along said line South 63 degrees 30 minutes 27 seconds East 52.56 feet to a new iron pipe in the line of Janice Wellons (Deed Book 335, Page 298 and Deed Book 352, Page 165), thence with Wellons, in the same direction, 25.00 feet to a new iron pipe, a corner with Wellons, thence along the line of Wellons, North 26 degrees 29 minutes 33 seconds East 105.00 feet to a new iron pipe, a corner with Wellons and in the right of way line of the southern margin of the right of way of Market Street, thence along the southern margin of the right of way line of Market Street South 63 degrees 30 minutes 27 seconds East 77.06 feet to the point and place of BEGINNING, and being Lot 2 shown on the survey entitled "Boundary & Division Survey for Town of Smithfield," dated May 16, 1995, drawn by Byrd Surveying, P.A.